IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.67787 of 2026

Arising Out of PS. Case No.-215 Year-2019 Thana- DHAMDAHA District- Purnia

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Deepak Rishi @ Dipak Rishidev Son of Late Rambhaju Rishi Resident of Village- Bishanpur Damdaha, P.S.- Damdaha, District- Purnea

... ... Petitioner/s

Versus

The State of Bihar

... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Mr.Avnish Kumar, Advocate
For the Opposite Party/s : Mr.Shyam Kumar Singh, APP

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CORAM: HONOURABLE MR. JUSTICE ALOK KUMAR

ORAL ORDER

2 19-09-2026 Heard the learned counsel for the petitioner and the learned A.P.P. for the State.

2. The petitioner seeks bail in connection with Damdaha PS Case No. 215 of 2019, instituted for the offence under Section 304(B) and other allied sections of B.N.S. 2023.

3. The prosecution case, in brief, is that informant's daughter was subjected to torture in her matrimonial house, which resulted in her death due to poisoning. It is alleged that the accused persons performed last rites without giving any information to the informant and his family members.

4. The learned counsel for the petitioner submits that the petitioner is the father-in-law of the deceased and he

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has clean antecedents. Learned counsel further submits that the petitioner is in custody since 14.06.2026 and charge-sheet has been filed. Learned counsel also submits that the petitioner has falsely been implicated in this case merely because he is the father-in-law.

5. The learned APP for the State has vehemently opposed the prayer for grant of bail to the petitioner.

6. Having heard the parties and taking into consideration the fact that charge-sheet has been filed and petitioner is the father-in-law of the deceased, this Court is inclined to grant bail to the petitioner.

7. Let the abovenamed petitioner be released on bail on furnishing bail bonds of Rs. 10,000/- (Rs. Ten Thousand) with two sureties of the like amount each to the satisfaction of the learned C.J.M., Purnea, in connection with Damdaha PS Case No. 215 of 2019, subject to the following conditions :-

(I) One of the bailors shall be the petitioner’s own or close family member.

(II) The petitioner shall appear on each and every date fixed during the trial and also co-operate in the process of trial.

(III) The petitioner shall not tamper with the

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prosecution evidence or influence/ intimidate any witness during the course of trial.

(IV) The petitioner shall not commit offence of a similar nature in future.

In case of violation of any of the aforesaid conditions, the Trial court shall be at liberty to cancel the bail bonds of the petitioner.

(Alok Kumar, J)

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